

23TRCV02702 23TRCV02702

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Case Number: 23TRCV02702 Hearing Date: August 11, 2026 Dept: M

LOS ANGELES

SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday, August 11, 2026 Department M Calendar

No.

PROCEEDINGS

Akeisha

S. Wilson v. Hyundai Motor America, et al.

23TRCV02702

1. Hyundai Motor America's Motion to Compel Production of
Plaintiff's Vehicle for Inspection

TENTATIVE RULING

Hyundai Motor America's Motion to Compel Production of
Plaintiff's Vehicle for Inspection is denied.

Background

Plaintiff filed the Complaint on August 17, 2023.

Plaintiff alleges the following facts. Plaintiff alleges that her 2021 Hyundai Palisade suffers from electrical and transmission defects. Plaintiff set forth causes of action under the Song-Beverly Act.

Motions to
Compel

CCP § 2031.300 states: "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply: The party making the demand may move for an order compelling response to the demand." (CCP § 2031.300(b)).

Defendant states that it served upon Plaintiff a Demand for Inspection of Property on May 4, 2026. (Decl., Chad Hommes, ¶ 4). While titled "Demand for Inspection of Property," the demand is essentially a Demand for Inspection of Documents and Things for purposes of CCP § 2031.010 et seq. Defendant's counsel's declaration is completely unclear as to whether a formal response was served by Plaintiff to the demand. Instead, counsel simply states that the parties were unable to agree upon dates when discussions were made between May 4, 2026 and May 26, 2026. The motion was filed on May 27, 2026.

Fortunately, Plaintiff's counsel provides some clarity and shows that a formal response to the Demand was served on June 2, 2026. (Decl., Camilo Fernandez, ¶ 6, Ex. D). It is unclear why Defendant filed and served this motion within 30 days of the service of the demand prior to the date that Plaintiff was required to respond to the demand. Pursuant to CCP§ 2031.260, a party has thirty days after service of a demand for inspection within which to serve a response. Since Defendant served its Demand on May 4, 2026, Plaintiff had until June 3, 2026 to timely respond. Plaintiff served a timely response.

Further, the Court notes that the motion is being heard after the discovery motion cut off date. Code Civ. Proc., § 2024.020 states: "(a) Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action. (b) Except as provided in Section 2024.050, a continuance or postponement of the trial date does not operate to reopen discovery proceedings." The motion is being heard on August 11, 2026. The trial date is August 18, 2026. While Defendant applied ex parte to advance the hearing date of this motion, nothing in the minute order

of June 23, 2026 mentions reopening discovery for the purpose of hearing this motion. Without a specific order stating that discovery is reopened for the purpose of hearing this motion, discovery is still deemed closed.

Plaintiff's other arguments

regarding the lack of meet and confer and lack of a separate statement would only apply if this was a motion to compel further responses to a demand for inspection of documents and things. Typically, a motion to compel vehicle inspection would be filed and served after a formal response by the other party such as objections. In those situations, the motion would be a motion to compel further responses to an inspection demand which would require a meet and confer declaration and a separate statement. However, as noted above, this motion was filed even before an actual response was served by Plaintiff.

Thus, the Motion to Compel

Production of Plaintiff's Vehicle for Inspection is denied.

Sanctions

Defendant's request for

sanctions is denied. Plaintiff's request for sanctions is denied without prejudice. While a request for sanctions was made, no specific documentation to support an amount of sanctions was provided.

Plaintiff is ordered to give notice of this ruling.